

Framed through AIPLA's perspective
(Engineering Ethics & IP)

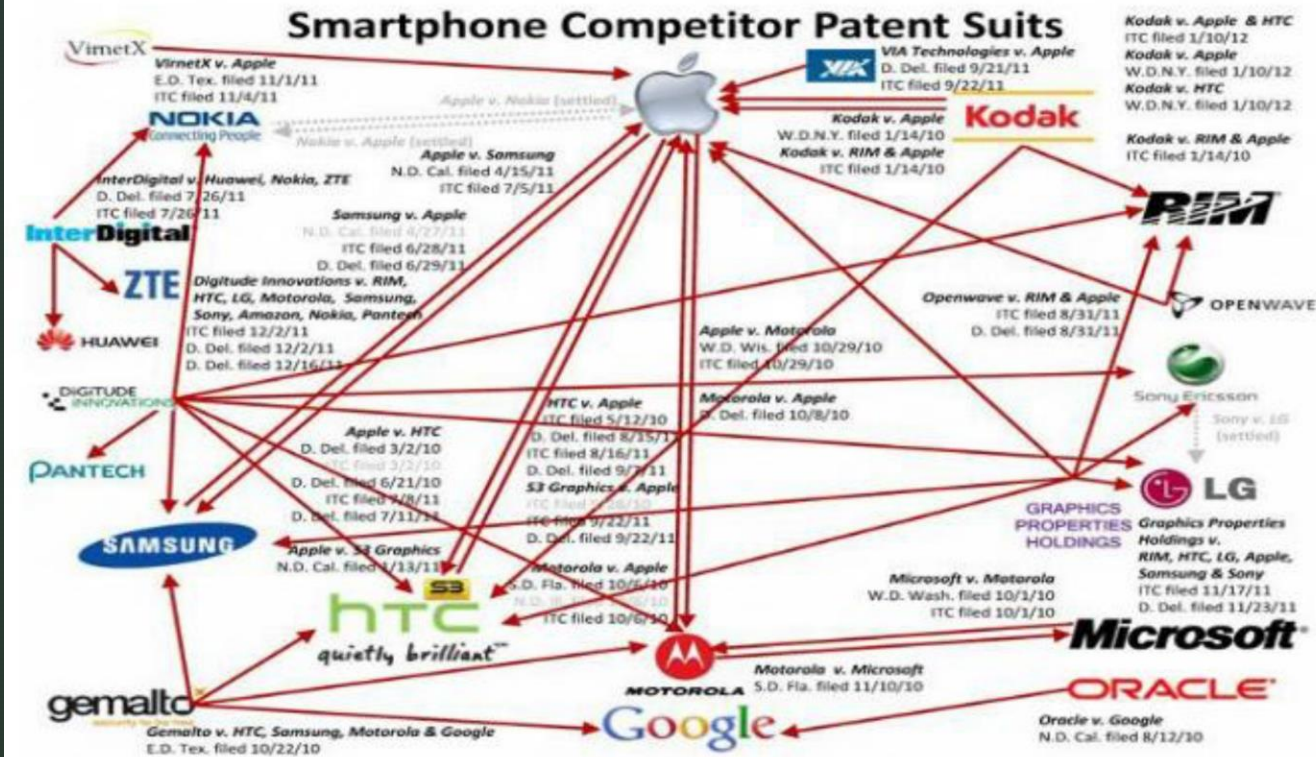


Apple v. Samsung Worldwide Litigation Overview

Background & Scope

- Global smartphone patent wars **beginning April 2011**
- Claims: design patents, utility patents, trade dress & unfair competition
- Multiple jurisdictions: US, EU (Germany/UK/Netherlands), South Korea, Japan, Australia

"Patent War"



Source: PCMag.com

AIPLA

Parties & Technologies at Issue

- Apple: iPhone/iPad industrial designs (rounded corners, icon grid), UI features
- Samsung: Android smartphones & tablets; SEP and non-SEP counterclaims
- Core themes: innovation, consumer choice, standards, and design value

AIPLA – Who & Why They Weighed In

AIPLA

American Intellectual Property Law Association; filed amicus in Samsung v. Apple (U.S. Supreme Court, 2016).

Purpose

Address the meaning of “article of manufacture” for design-patent damages under 35 U.S.C. §289.

Apple v. Samsung – Apple I: Mobile Phones

PRODUCTS INVOLVED IN THE TRIAL:

iPhone 3G
iPhone 3GS
iPhone 4
iPad 2 3G
iPod Touch

Photos: El Tiempo/Zuma Press (Galaxy S); Apple (iPhone 4)
The Wall Street Journal
Source: WSJ research



Samsung Says...

...THE IPHONE 4 INFRINGES THESE PATENTS:

PATENT '516
Manages the phone's resources and battery by prioritizing data

PATENT '941
Provides a way to package and transmit data more efficiently



PATENT '893

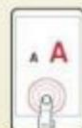
Switching between pictures in a gallery and the camera

Apple Says...

...THE GALAXY S INFRINGES THESE PATENTS:

PATENTS '087, '677
Ornamental design of the iPhone

PATENT '305
Rounded square icons on interface



PATENT '163

Enlarging documents by tapping the screen



Captivate
Continuum
Droid Charge
Epic 4G
Exhibit 4G
Fascinate
Galaxy Ace
Galaxy Prevail
Galaxy S
Galaxy S 4G
Galaxy S II (AT&T)
Galaxy S II (i9100)
Galaxy S II (T-Mobile)
Galaxy S II (Epic 4G)
Galaxy S II (Skyrocket)
Galaxy S Showcase
Galaxy Tab
Galaxy Tab 10.1 (WiFi)
Galaxy Tab 10.1 (4G LTE)
Gem
Indulge
Infuse 4G
Intercept
Mesmerize
Nexus S 4G
Replenish
Transform
Vibrant



PATENT '711

A method allowing multi-tasking while playing music on the phone



PATENT '460

Taking and emailing pictures using a scroll action



PATENT '915

Distinguishes between single-touch and multi-touch gestures



PATENT '381

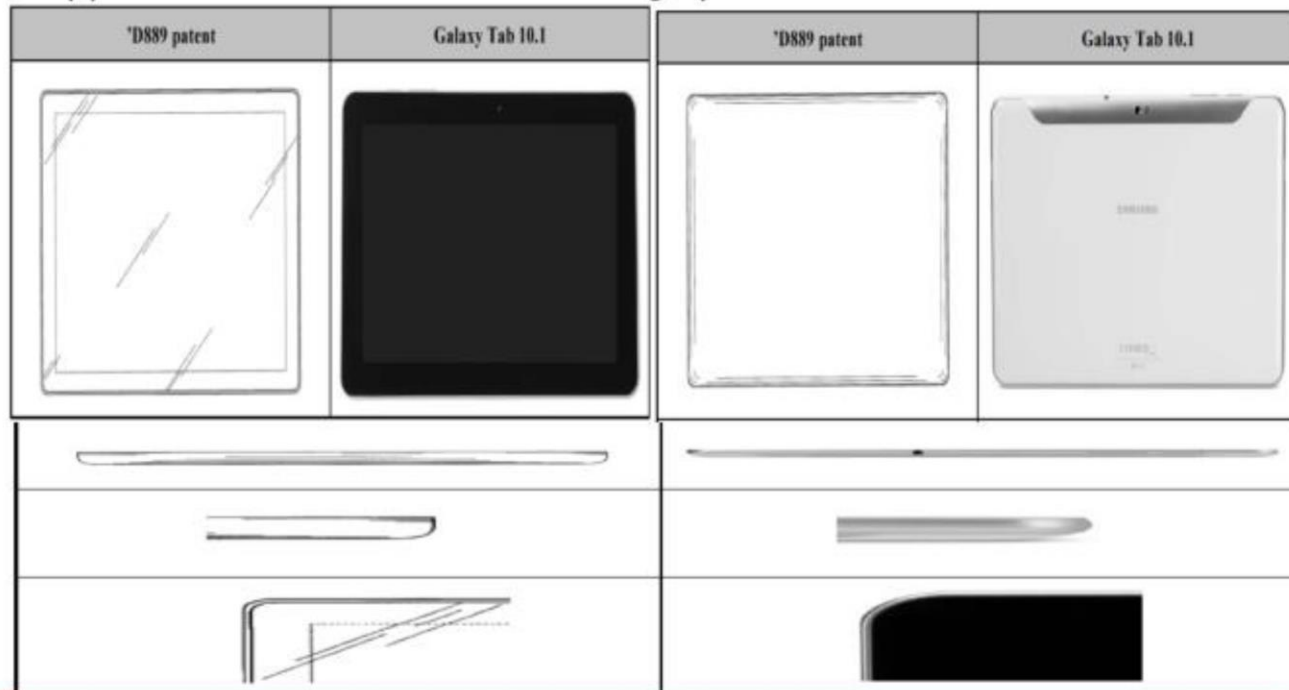
'Bounce-back' feature when scrolling beyond the edge of a page

Source – Prafulla.net

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Apple v. Samsung – Apple I: Tablets

- Utility Patents also asserted against Samsung Tablets
- Apple asserts additional tablet design patent



U.S. (N.D. Cal.) – 2012 Jury Verdict

- Jury largely for Apple; initial damages ≈ \$1.05B (later reduced/adjusted)
- Design & utility patent findings; no injunction ultimately changing market
- Set stage for years of appeals and retrials

SCOTUS 2016 – Samsung v. Apple

- Unanimous decision: “article of manufacture” can be a component, not necessarily the whole product (§289)
- Overturned near-\$400M total-profit award and remanded for damages framework
- Key issue: how to identify the relevant article and allocate total profits

AIPLA's Position (2016 Amicus)

- Argued §289 awards “total profit” of the entire article of manufacture covered by the design
- Supported a broad reading grounded in text & history to deter design piracy
- Warned against weakening remedies for design patents

Damages on Remand & 2018 Retrial

- Post-SCOTUS, district court crafted factors for identifying the article of manufacture
- May 2018 jury: \$539M to Apple ($\approx$ \$533M design + \$5.3M utility)
- June 2018: Parties settle U.S. dispute; terms undisclosed

Global Footprint of Litigation

- United States (district court, Federal Circuit, ITC)
- Europe: Germany (injunctions), United Kingdom (no design infringement), Netherlands
- Asia-Pacific: South Korea (split rulings), Japan, Australia

Europe Focus: Germany

- 2011 Düsseldorf court issued EU-wide preliminary injunction on Galaxy Tab 10.1 (later narrowed)
- Subsequent German decisions fluctuated as evidence and designs changed
- Illustrates aggressive use of design rights for fast injunctive relief

Europe Focus: United Kingdom

- 2012 High Court: Samsung's Galaxy Tab did NOT infringe iPad registered design
- Court ordered Apple to publish corrective statements/notices
- Shows divergent design standards & remedies across EU jurisdictions

Asia Focus: South Korea

- 2012 Seoul Central District Court: both sides infringed certain patents
- Narrow sales bans on older models; small damages to each party
- Design claims fared differently than in U.S./Germany

Asia-Pacific: Japan & Australia

- Japan: mixed outcomes; Apple lost some claims re multimedia sync/patents
- Australia: early injunction activity and expedited appeals on tablets
- National standards and evidence rules influenced outcomes

Ethics & Policy Themes

- Balancing protection of distinctive designs vs. competition & consumer choice
- Role of standards-essential patents (FRAND) in countersuits
- Forum shopping & global compliance burdens for engineers

Design Patents After Samsung v. Apple

- Greater focus on defining the article of manufacture in litigation
- Damages theories scrutinized; risk of windfalls vs. under-deterrence
- In-house teams document component-level design contributions

Practical Takeaways (AIPLA Lens)

- Strong remedies for design patents remain vital against counterfeits
- Clearer tests needed for component vs. whole-product profits
- Early injunctions can shape markets more than damages later

Mini-Timeline: Key Milestones (2011–2018)



Damages Anatomy (Illustrative)

Design Patents (§289)

Total profit on the relevant article of manufacture (SCOTUS clarified could be a component).

Utility Patents (§284)

Reasonable royalty / lost profits; distinct from design-profit remedy.

Engineering Management Checklist

- Document design origins & alternatives; maintain UI/industrial design records
- Assess component vs. device-level exposure in design patents
- Plan for multi-jurisdictional enforcement & compliance

Summary

- SCOTUS, Samsung v. Apple (2016) opinion
- AIPLA Amicus (2016): design damages & article of manufacture
- Reuters coverage of 2018 retrial and settlement; UK/German rulings context